

Ajay Kumar Singh @ Ajay Singh vs The State Of Jharkhand on 4 July, 2023

Author: Ambuj Nath

Bench: Ambuj Nath

IN THE HIGH COURT OF JHARKHAND AT RANCHI
A.B.A No. 2499 of 2023

Ajay Kumar Singh @ Ajay Singh	---	---	Petitioner
	Versus		
1. The State of Jharkhand			
2. Anju Kumari	---	---	Opp. Parties

CORAM: Hon'ble Mr. Justice Ambuj Nath

For the Petitioner: Mr. Abhijeet Kr. Singh, Advocate For the O.P-State: Mr. Rajesh Kumar, A.P.P.
For the O.P. No. 2: Mr. Vikash Kumar, Advocate

06 / 04.07.2023 Heard the parties.

2. Petitioner is apprehending his arrest in connection with Mahila P.S. Case No. 32/2022 for the offences registered under sections 498A, 323/34 of the Indian Penal Code, pending in the court of Sri Richesh Kumar, learned Judicial Magistrate, Jamshedpur.

3. Vide order dated 15.06.2023, both parties were directed to remain physically present. Both parties are present. Opposite party no. 2 had shown her inclination to resume her matrimonial relationship, but the petitioner Ajay Kumar Singh has denied to receive her back.

4. Mr. Vikash Kumar, learned counsel appearing for the opposite party no. 2, submitted that petitioner has filed an application under section 9 of Hindu Marriage Act for restitution of conjugal right but when the court asked him to receive her back to the matrimonial house, he denied.

It appears that the petitioner has filed an application under section 9 of Hindu Marriage Act just to save his skin.

5. It is alleged that the opposite party no. 2 was subjected to torture to enforce the demand of Rs. 7.00 lakh. Opposite party no. 2 is ready to resume her matrimonial relationship, but the petitioner

has denied to receive her back to the matrimonial house.

6. Considering the aforesaid facts, I am not inclined to extend the privilege of anticipatory bail to the petitioner. Accordingly, his prayer for anticipatory bail stands rejected.

(Ambuj Nath, J) Ranjeet/